

AMADOR SUPERIOR COURT LAW AND MOTION TENTATIVE RULINGS

Monday, January 3, 2022

TO REQUEST A HEARING ON ANY MATTER ON THIS CALENDAR, YOU MUST CALL THE COURT AT (209) 257-2692 BY 4:00 P.M. ON THE DAY PRECEDING THE HEARING. NOTICE OF THE INTENTION TO APPEAR MUST ALSO BE GIVEN TO ALL OTHER PARTIES.

IF THE CLERK IS NOT NOTIFIED OF A PARTY'S INTENTION TO APPEAR, THERE WILL BE NO HEARING AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT. NO FURTHER NOTICE OF THE COURT'S RULING WILL BE PROVIDED.

20-CVC-11670

KATEN, JODI

VS.

POTTS, DONNA

DEMURRER - DEFENDANT'S

TENTATIVE RULING:

Defendants' Demurrer to the Second Amended Complaint is **OVERRULED**.

A demurrer challenges the sufficiency of a complaint based on defects that appear on its face or from matters that are subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; CCP §430.10.) To survive a demurrer, a complaint must plead specific facts to establish every element of a cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879.) A court should treat a demurrer as admitting all material facts that are properly pled, but need not accept conclusions, contentions or deductions of law or fact. (Blank, 39 Cal.3d at 318.)

Plaintiff is required to plead factual allegations addressing the elements of each cause of action. Although pleadings are to be liberally construed, they must nonetheless set forth essential facts with reasonable precision. (Semole v. Sansoucie (1972) 28 Cal.App.3d 714.) Further, a court in examining the sufficiency of a complaint should "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law or fact." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

First Cause of Action for Breach of Contract – Defendants Alisa Johnson, Rodger Steele, Patti Steele, Justine Brooks, Juanita Steele and Charlotte Welch:

To establish breach of contract, each plaintiff must prove (1) the existence of the contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages to the plaintiff. (Maxwell v. Dolezal (2014) 231 Cal.App.4th 93, 98.)

Plaintiff's SAC attaches, by errata, Exhibit A, a copy of the August 3, 2018 agreement signed by all eight (8) defendants and alleges that Plaintiff performed under the contract by paying each Defendant the sum of \$5,000. Defendants' breached by not tendering title to the mobile home to Plaintiff, resulting in Plaintiff sustaining damages.

Defendant argues Plaintiff did not plead with specificity the nature of the agency between Donna Marie Potts and the three Defendants who were not present at the time of signing the contract, Justine Brooks, Juanita Steele and Charlotte Welch. However, at this stage of the pleadings it is sufficient that Plaintiff alleges Donna Marie Potts had "authorization" to speak and act on the absent Justine Brooks, Juanita Steele and Charlotte Welch. The SAC alleges that each and every Defendant "ratified" the August 3rd agreement by accepting the \$5,000 cashier's checks.

Further, Defendant contends that the second contract dated August 10, 2018 (MPHA) contains a merger clause and therefore prevents bringing any claim under the August 3rd agreement. The MPHA was signed by Donna Marie Potts and James Potts, and not the remainder of the Defendants.

Plaintiff has sufficiently pleaded facts to support the first cause of action for breach of contract.

Second Cause of Action for Breach of Contract – Defendants Donna Marie Potts and James Potts:

Plaintiff's SAC attaches, by errata, Exhibit B, a copy of the August 10, 2018, manufactured home purchase agreement (MHPA) and alleges that Plaintiff performed under the contract by paying each Defendant the sum of \$5,000. Defendants' breached by not tendering title to the mobile home, not paying the back taxes of at least \$7,393.55 and the fees for removing waste of at least \$1,613.00 and park fees of \$5,712.58.

Plaintiff has sufficiently pleaded facts to support the second cause of action for breach of contract.

Third Cause of Action for action for intentional misrepresentation and Fourth Cause of Action for Negligent Misrepresentation against all Defendants:

Intentional misrepresentation requires that plaintiff allege (1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another's reliance on the misrepresentation, (4) actual and justifiable reliance, and (5) resulting damage.

(Daniels v. Select Portfolio Sveg., Inc. (2016) 246 Cal.App.4th 1150, 1166 citing Chapman v. Skype Inc. (2013) 220 Cal.App.4th 217, 230–231.)

Negligent misrepresentation is a form of deceit, the elements of which consist of (1) a misrepresentation of a past or existing material fact, (2) without reasonable grounds for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) ignorance of the truth and justifiable reliance thereon by the party to whom the misrepresentation was directed, and (5) damages. (Fox v. Pollack (1986) 181 Cal.App.3d 954, 962.)

Plaintiff's SAC alleges (1) all the Defendants present on August 3, 2018 claimed to Plaintiff that they were joint owners of the mobile home along with Defendants Justine Brooks, Juanita Steele and Charlotte Welch, for whom Donna Marie Potts was authorized to act and speak on behalf of, (2) the Defendants knew or should have known they did not legally hold title to the mobile home, (3) the representation was made with the intent to defraud and induce Plaintiff to purchase the mobile home and pay each of them \$5,000, (4) Plaintiff obtained cashier's checks for each Defendant in the amount of \$5,000 and took up residence in the mobile home, (5) Plaintiff was not given title and has damages for back taxes, waste removal, and park fees. Moving party argues that each element of both allegations for misrepresentation are "sound in fraud and, therefore, each element must be pleaded with specificity". (Daniels at 1166.) Also, that because the August 3rd agreement provided that the parties were "the family of Margaret Lemely", Plaintiff fails to have justifiably relied on the misrepresentation.

Even with a heightened pleading standard, Plaintiff has sufficiently pleaded facts to support the third cause of action for intentional misrepresentation and fourth cause of action for negligent misrepresentation.

Defendants are ordered to file an Answer within ten (10) days of the date of the ruling, unless otherwise stipulated by the parties. Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.